IN THE DISTRICT COURT OF APPEAL
OF THE STATE OF FLORIDA
SIXTH DISTRICT

CASE NO.: 6D26-0718

M.K.E. HOMES LLC, a Florida limited liability company,

Appellant / Plaintiff,

v.

TAMI P. SIMMONS, AS CLERK OF COURT FOR GLADES COUNTY, FLORIDA; GAIL A. JONES, AS TAX COLLECTOR FOR GLADES COUNTY, FLORIDA; and LABELLE HOMES INC., a Florida corporation,

Appellees / Defendants.

Lower Tribunal No.: 2024CA000125

ANSWER BRIEF OF APPELLEE LABELLE HOMES, INC.

Appellee LaBelle Homes, Inc.

Marc L. Shapiro, Esq.
MARC L. SHAPIRO, P.A.
720 Goodlette-Frank Rd. N, Suite 304
Naples, FL 34102
Primary: marc@attorneyshapiro.com
Secondary:
service@attorneyshapiro.com
Counsel for Appellee LaBelle Homes Inc.

TABLE OF CONTENTS

PRELIMINARY STATEMENT 1

STATEMENT OF THE CASE AND FACTS 3

A. M.K.E. acquired the Property using the Miami mailing address. 3

B. The E911 applications sought a new locatable address for the Property, not a change of M.K.E.'s owner-mailing address on the tax roll. 4

C. The contemporaneous tax-deed records continued to identify Miami as M.K.E.'s owner mailing address. 6

D. Other public records containing Brittany Lane did not change the owner address on the certified roll. 7

E. The Clerk mailed the statutory notice to the address certified by the Tax Collector. 8

F. The trial court entered final summary judgment and quieted title in LaBelle Homes. 9

SUMMARY OF ARGUMENT 10

STANDARD OF REVIEW 13

ARGUMENT 14

I. M.K.E.'S APPEAL DEPENDS UPON A FACTUAL PREMISE THE RECORD DOES NOT ESTABLISH: BRITTANY LANE DID NOT REPLACE MIAMI AS M.K.E.'S OWNER MAILING ADDRESS ON THE OPERATIVE TAX ROLL. 14

A. The E911 form requested a "New Address" for the parcel. 14

B. The Property Appraiser's response confirms a parcel-address update, not a tax-mailing-address change. 15

C. The April 2024 tax-deed records provide contemporaneous evidence that Miami remained the owner mailing address shown on the tax roll. 16

II. THE STATUTORY TAX-DEED FRAMEWORK SUPPORTED THE TRIAL COURT'S RULING AND DID NOT REQUIRE AN OPEN-ENDED SEARCH FOR ALTERNATIVE ADDRESSES. 17

III. VOSILLA IS MATERIALLY DISTINGUISHABLE. 19

IV. DAFERO SUPPORTS AFFIRMANCE EVEN THOUGH THE FACTS ARE NOT IDENTICAL. 22

V. THE CERTIFIED-MAIL RECEIPT DISPUTE DOES NOT REQUIRE REVERSAL. 24

VI. THE JUDGMENT QUIETING TITLE IN LABELLE HOMES SHOULD BE AFFIRMED. 27

CONCLUSION 28

TABLE OF AUTHORITIES

Cases

Bozeman v. Higginbotham, 923 So. 2d 535 (Fla. 1st DCA 2006) 26

Dafero Investments, LLC v. Estrella De Oro, LLC, 402 So. 3d 1119 (Fla. 3d DCA 2025) 12, 22

Delta Property Management, Inc. v. Profile Investments, Inc., 87 So. 3d 765 (Fla. 2012) 13, 26

Jones v. Flowers, 547 U.S. 220 (2006) 13, 26

Kidder v. Cirelli, 821 So. 2d 1106 (Fla. 5th DCA 2002) 23

Levy v. Ippolito, 503 So. 2d 1308 (Fla. 2d DCA 1987) 25

Mullane v. Central Hanover Bank & Trust Co., 339 U.S. 306 (1950) 19

Pares v. Soriano, 306 So. 3d 236 (Fla. 3d DCA 2020) 13

Saggese v. Dep't of Revenue, 770 So. 2d 1244 (Fla. 4th DCA 2000) 26

South Investment Properties, Inc. v. Icon Investments, LLC, 988 So. 2d 1114 (Fla. 5th DCA 2008) 25

Volusia County v. Aberdeen at Ormond Beach, L.P., 760 So. 2d 126 (Fla. 2000) 13

Vosilla v. Rosado, 944 So. 2d 289 (Fla. 2006) 2, 10

Statutes

§ 193.114(1)(a), Fla. Stat. 21

§ 197.502(4)(a), Fla. Stat. 8, 11, 17

§ 197.502(4)(e), Fla. Stat. 18

§ 197.522(1), Fla. Stat. 26

§ 197.522(3), Fla. Stat. 11, 18

§ 197.552, Fla. Stat. 10, 13, 27

Appellee LaBelle Homes, Inc. ("LaBelle Homes") submits this Answer Brief in response to the Second Initial Brief on the Merits of Appellant M.K.E. Homes LLC ("M.K.E.").

PRELIMINARY STATEMENT

LaBelle Homes was the successful purchaser at the August 8, 2024 tax-deed sale and is the present titleholder under the tax deed issued and recorded the following day. (R. 2770–2771). LaBelle Homes did not prepare the tax roll, certify the tax-deed application, select the address to which statutory notice was sent, or administer the tax-deed sale. Those statutory functions were performed by the governmental Appellees.

Accordingly, LaBelle Homes does not undertake in this Brief to defend every act or argument attributable to either governmental Appellee. The question as it relates to LaBelle Homes is narrower: whether M.K.E. has demonstrated reversible error requiring invalidation of the tax deed and reversal of the judgment quieting fee simple title in LaBelle Homes. It has not.

M.K.E.'s appeal rests principally on the assertion that it changed its legally operative tax-mailing address from 2933 S.W. 14th Street in Miami to 510 Brittany Lane in LaBelle before the tax-deed proceeding and that the

Property Appraiser confirmed that change. The objective record does not establish that proposition. Rather, the record distinguishes between the Property's physical or situs address, 1110 Norge Court, and M.K.E.'s owner mailing address as shown on the tax roll, which remained 2933 S.W. 14th Street, Miami, Florida.

That distinction defeats M.K.E.'s effort to bring this case within *Vosilla v. Rosado*, 944 So. 2d 289 (Fla. 2006). *Vosilla* involved express change-of-address communications for tax-related purposes and additional notice that the old address was no longer effective. This case involves E911 materials[1] requesting and verifying a new locatable address for the parcel, other public records containing Brittany Lane, and a statutory tax-deed file that continued to identify Miami as M.K.E.'s owner mailing address.

The trial court correctly entered summary judgment, upheld the tax deed, and quieted title in LaBelle Homes. The judgment should be affirmed.

[1] "E911" refers to the county's enhanced-911 addressing program, which assigns a locatable street address to a parcel to assist emergency responders and others in physically locating the property. (R. 2748–2751).

STATEMENT OF THE CASE AND FACTS

A. M.K.E. acquired the Property using the Miami mailing address.

M.K.E. acquired the subject property in July 2021 by General Warranty Deed. The deed identified M.K.E.'s mailing address as 2933 S.W. 14th Street, Miami, Florida 33145. (R. 2749). M.K.E. acknowledges that Miami was its correct mailing address when it acquired the Property. (R. 2748–2749).

M.K.E. later began using 510 Brittany Lane, LaBelle, Florida 33935 as its business and corporate mailing address, including in filings with the Florida Division of Corporations. (R. 2748–2750). But a corporate mailing address appearing in other records is not the same thing as the owner mailing address shown on the tax roll for purposes of a Chapter 197 tax-deed proceeding.

The distinction between M.K.E.'s corporate or business mailing address and the owner mailing address appearing in the records governing the tax-deed process is central to this appeal.

B. The E911 applications sought a new locatable address for the Property, not a change of M.K.E.'s owner-mailing address on the tax roll.

M.K.E. places substantial emphasis on E911 materials from 2022 and 2023. (M.K.E.'s Second Initial Br. 5–7, 21–28). Those materials show that county personnel received documents identifying Brittany Lane as an address associated with M.K.E. They do not, however, establish the proposition on which M.K.E.'s appeal depends, that M.K.E. requested and obtained a change to the owner-mailing-address field of the tax assessment roll.

The September 16, 2022, E911 Address Application identifies the parcel owner as M.K.E. Homes and lists 510 Brittany Lane in a separate "Mailing Address" field. (R. 2748–2750). But the governmental action selected on the form is significant. The form provided options for "New Address," "Address Verification," and "Request Address Change." M.K.E. selected "New Address." It did not select "Request Address Change". *Id.*

The governmental action that followed confirms the nature of the request. The E911 process assigned the parcel a locatable street address: 1110 Norge Court, LaBelle, Florida 33935. County correspondence described the E911 program as a system for assigning new locatable street

addresses to assist in locating property, including for emergency-response purposes. (R. 2748–2751).

M.K.E. relies heavily on Property Appraiser employee Trish Coleman's October 3, 2022, response that the "parcel has been updated as requested." (R. 2750–2751). But the statement must be read in context. The communication identified the parcel and 1110 Norge Court. It did not say that M.K.E.'s tax-mailing address had been changed to Brittany Lane. It did not say that the owner-mailing-address field of the assessment roll had been amended. It did not say that Miami had been removed. And it did not say that future tax-deed notices should be mailed to Brittany Lane.

Subsequent E911 correspondence likewise concerned verification of 1110 Norge Court as the Property's locatable address. (R. 2748–2751). Thus, the E911 evidence establishes that 1110 Norge Court became the Property's physical or site address. It does not establish that 510 Brittany Lane replaced Miami as M.K.E.'s owner mailing address on the assessment roll.

C. The contemporaneous tax-deed records continued to identify Miami as M.K.E.'s owner mailing address.

The distinction between site address and owner mailing address is confirmed by the records generated when the tax-deed proceeding actually commenced.

On or about April 15, 2024, the Tax Collector obtained the Property Information Report required in connection with the tax-deed application. (R. 2765–2766). The report separately identified:

> "Current Property Owner Name & Mailing Address
> as Shown on Tax Roll:"
> M.K.E. Homes LLC
> 2933 S.W. 14th Street
> Miami, Florida 33145

and:

> "Site Address:"
> 1110 Norge Court
> LaBelle, Florida.

(R. 2765–2766). The same report identified M.K.E.'s titleholder address of record as the Miami address appearing on the General Warranty Deed. *Id.*

Thus, the April 2024 report is contemporaneous evidence that the records actually used in the tax-deed process distinguished between the two concepts M.K.E.'s Second Initial Brief conflates: 1110 Norge Court was

identified as the site address, while Miami was identified as M.K.E.'s owner mailing address as shown on the tax roll.

On May 10, 2024, the Tax Collector certified the tax-deed application and provided the Clerk with M.K.E.'s Miami address. (R. 2755, 2765–2766, 2786). The trial court found that the address was consistent with both the vesting deed and the most recent certified tax roll. (R. 3372–3386).

D. Other public records containing Brittany Lane did not change the owner address on the certified roll.

M.K.E. also relies on its Florida Division of Corporations filings and an April 2023 Notice of Commencement identifying Brittany Lane. (R. 2752–2756). There is no dispute that these documents exist. The dispute is over their legal significance.

A Notice of Commencement is not the record of conveyance vesting legal title in M.K.E., and an address appearing on an unrelated recorded instrument does not itself amend the legal titleholder's mailing address on the assessment roll.

M.K.E. additionally emphasizes that the Tax Collector's vendor identified the Notice of Commencement and other records containing Brittany Lane during its searches. (R. 2770, 3498, 3410–3411). But the contemporaneous Property Information Report used in the tax-deed

process expressly identified Miami as M.K.E.'s "Mailing Address as Shown on Tax Roll." (R. 2765–2766).

The mere appearance of another address in another governmental record does not transform that address into the legal titleholder's mailing address prescribed by section 197.502(4)(a), Florida Statutes. Nor does it render LaBelle Homes' tax deed invalid.

E. The Clerk mailed the statutory notice to the address certified by the Tax Collector.

On May 24, 2024, the Clerk executed and recorded the Notice of Application for Tax Deed. (R. 2767).

The Clerk thereafter mailed the notice by certified mail, return receipt requested, to M.K.E. at the Miami address supplied in the Tax Collector's certification. The mailing generated a return receipt bearing the designation "MKE Homes." (R. 1448-1449). The parties dispute whether the person who completed the receipt was authorized to receive mail for M.K.E.

The parties disagree whether an authorized representative of M.K.E. actually received the mailing. LaBelle Homes does not contend that resolution of that factual dispute is necessary to affirm. Actual receipt is not the constitutional standard. The relevant question is whether the means

employed were reasonably calculated, under the circumstances known to the responsible governmental officials, to provide notice.

In addition to mailing, notices were supplied for service and posting, notice was posted at the Property, and notice was published for four successive weeks. (R. 3372–3386).

The Property was thereafter sold at the August 8, 2024 tax-deed sale, at which LaBelle Homes submitted the successful bid. (R. 2770–2771). The Clerk issued and recorded the tax deed to LaBelle Homes on August 9, 2024. (R. 2771).

F. The trial court entered final summary judgment and quieted title in LaBelle Homes.

After discovery, all three Defendants separately moved for summary judgment. (R. 1128–1289; 1303–1318; 1330–1484). M.K.E. filed an Omnibus Response presenting its address-change and notice arguments. (R. 2744–2790).

Following a hearing, the trial court entered its Order Granting Defendants' Motions for Summary Judgment on November 6, 2025. (R. 3372–3386). The court found, among other things, that the Tax Collector properly identified M.K.E. at the Miami address appearing on both the recorded vesting deed and the most recent certified tax roll; that the Clerk

was entitled to rely on the Tax Collector's certification; that *Vosilla v. Rosado*, 944 So. 2d 289 (Fla. 2006), was distinguishable; and that the current statutory scheme did not require an open-ended search of unrelated governmental records for alternative addresses. *Id.*

The trial court further found the tax deed valid and, on that basis, held that the deed conveyed the statutory title provided by section 197.552, Florida Statutes, and quieted fee simple title in LaBelle Homes. (R. 3372–3386).

M.K.E.'s motion for rehearing was denied on February 18, 2026. (R. 3435–3436). This appeal followed.

SUMMARY OF ARGUMENT

The judgment should be affirmed for five principal reasons.

First, M.K.E.'s argument begins with a factual proposition the objective record does not support. M.K.E. contends that its E911 submissions changed its owner mailing address on the tax assessment roll to 510 Brittany Lane. But the E911 materials show an application for a "New Address" for the Property, ultimately resulting in assignment and verification of 1110 Norge Court. The later, contemporaneous Property

Information Report expressly distinguishes that site address from M.K.E.'s mailing address as shown on the tax roll, which remained Miami.

Second, Chapter 197 prescribed the address sources governing the tax-deed process. Section 197.502(4)(a) directs the Tax Collector to identify the legal titleholder using the record of conveyance or, where applicable, the latest assessment roll. Section 197.522(3) expressly permits the Clerk to rely on addresses provided by the Tax Collector based on the certified tax roll and property information reports and states that the Clerk has no independent duty to investigate the validity of those addresses. The current statutory framework does not require the Clerk to treat every address appearing in every governmental record as a competing tax-notice address.

Third, *Vosilla* does not compel reversal. In *Vosilla*, the owners expressly directed the Tax Collector to send correspondence concerning the property to their new address; separately sent the Clerk a certified change-of-address letter directing its property-tax department to change its records; the Clerk acknowledged that request; and, before the sale, the sheriff gave the Clerk written notice that the owners no longer lived at the old address. Those facts led the Supreme Court to conclude that the

government knew or reasonably should have known that it was using an obsolete address.

Those facts are absent here. An E911 application containing Brittany Lane as owner contact information but requesting a new locatable address for the parcel is materially different from an explicit instruction to change the address for tax correspondence. Whatever M.K.E. may have subjectively believed, it did not submit an objectively clear instruction to change the tax-roll owner mailing address.

Fourth, *Dafero Investments, LLC v. Estrella De Oro, LLC*, 402 So. 3d 1119, 1120–21, 1124–25 (Fla. 3d DCA 2025), supports affirmance although it is not factually identical. *Dafero* rejects an open-ended duty to search unrelated records for alternative addresses and distinguishes *Vosilla* because the owner there had not updated its address.

Fifth, the disputed identity of the person who completed the certified-mail receipt does not require reversal. LaBelle Homes need not establish actual receipt. The constitutional issue is the reasonableness of the notice procedure. The Clerk mailed notice to the address supplied through the statutory process and received an apparent delivery confirmation rather than a returned, unclaimed, or undeliverable tax-sale notice that required additional reasonable steps, when practicable, in *Jones v. Flowers*, 547

U.S. 220 (2006), and *Delta Property Management, Inc. v. Profile Investments, Inc.*, 87 So. 3d 765 (Fla. 2012).

Because M.K.E. has demonstrated no reversible defect invalidating the tax deed, the deed conveyed the statutory title provided by section 197.552, and the judgment quieting title in LaBelle Homes should be affirmed.

STANDARD OF REVIEW

An order granting summary judgment is reviewed de novo. *Volusia County v. Aberdeen at Ormond Beach, L.P.*, 760 So. 2d 126, 130 (Fla. 2000).

Likewise, whether undisputed material facts satisfy constitutional due process presents a legal issue reviewed de novo. *See Pares v. Soriano*, 306 So. 3d 236, 238 (Fla. 3d DCA 2020) (reviewing legal issues de novo). The parties' disagreement over whether an authorized corporate representative completed the return receipt is immaterial because affirmance does not depend on proof of actual receipt. Although review is de novo, M.K.E. bears the burden as appellant of demonstrating reversible error in the judgment under review.

ARGUMENT

I. M.K.E.'S APPEAL DEPENDS UPON A FACTUAL PREMISE THE RECORD DOES NOT ESTABLISH: BRITTANY LANE DID NOT REPLACE MIAMI AS M.K.E.'S OWNER MAILING ADDRESS ON THE OPERATIVE TAX ROLL.

M.K.E.'s Second Initial Brief repeatedly asserts that the Property Appraiser changed M.K.E.'s owner mailing address on the assessment roll from Miami to Brittany Lane. *See* M.K.E.'s Second Initial Br. 5–7, 21–28.

The assertion is central because M.K.E. recognizes that *Vosilla* involved a taxing authority that had actually received a titleholder's change of address but nevertheless sent tax-sale notice to the superseded address.

The evidence cited by M.K.E. does not establish the same circumstance here.

A. The E911 form requested a "New Address" for the parcel.

The September 2022 application identifies Brittany Lane in a field labeled "Mailing Address." (R. 2748–2750). LaBelle Homes does not dispute that fact.

But the requested governmental action appears immediately above it. The form provided choices for "New Address," "Address Verification," and

"Request Address Change." M.K.E. selected "New Address." It did not select "Request Address Change."

The ensuing governmental action confirms what was requested. Glades County assigned the parcel a new locatable street address: 1110 Norge Court.

Thus, M.K.E.'s form disclosed Brittany Lane as contact information for the parcel owner, but the governmental task requested on the E911 form was the creation of a new locatable address for the parcel.

The form's content likewise points to a site- or locatable-address function: it called for an engineered site plan and driveway-to-boundary measurements. (R. 2748–2750). That content reinforces the objective distinction between an E911 locatable-address application and an instruction to change the owner mailing address used for tax notices.

That is not the same thing as changing M.K.E.'s owner mailing address on the tax roll for purposes of tax-deed notice.

B. The Property Appraiser's response confirms a parcel-address update, not a tax-mailing-address change.

M.K.E. relies heavily upon Trish Coleman's October 3, 2022, email stating that the property "has been updated as requested." (R. 2750–2751).

But the complete communication matters. Coleman referred to the parcel and identified 1110 Norge Court. *Id.* She did not state that:

- M.K.E.'s tax-mailing address had been changed to Brittany Lane;
- the owner-mailing-address field of the assessment roll had been amended;
- Miami had been removed; or
- future tax-deed notices should be mailed to Brittany Lane.

The only update shown by the E911 materials is the update requested through the E911 process: assignment and verification of the Property's locatable address.

The October 2022 email therefore does not establish the key factual premise of M.K.E.'s due-process argument.

C. The April 2024 tax-deed records provide contemporaneous evidence that Miami remained the owner mailing address shown on the tax roll.

The contemporaneous tax-deed records show which address information was actually used when the tax-deed process began.

The Property Information Report obtained in April 2024 separately identified M.K.E.'s owner mailing address "as shown on tax roll" as the

Miami address and the Property's site address as 1110 Norge Court. (R. 2765–2766).

The report is not offered as dispositive proof of the accuracy of its own preparation. It is contemporaneous evidence that the records actually used in the tax-deed process continued to distinguish 1110 Norge Court as the site address from Miami as the owner mailing address shown on the tax roll. *Id.*

On May 10, 2024, the Tax Collector certified the tax-deed application and transmitted the Miami address to the Clerk. (R. 2755, 2765–2766, 2786). The trial court found that the address was consistent with both the vesting deed and the most recent certified tax roll. (R. 3372–3386).

M.K.E.'s contrary assertion is therefore not a basis for reversal.

II. THE STATUTORY TAX-DEED FRAMEWORK SUPPORTED THE TRIAL COURT'S RULING AND DID NOT REQUIRE AN OPEN-ENDED SEARCH FOR ALTERNATIVE ADDRESSES.

M.K.E.'s Second Initial Brief seeks to convert the presence of Brittany Lane in other public records into a constitutional defect in the tax deed. That is not what Chapter 197 requires.

Section 197.502(4)(a), Florida Statutes, governs the Tax Collector's identification of persons to be notified. The statute directs attention to

legally operative sources such as the record of conveyance and, where applicable, the latest assessment roll. The address supplied to the Clerk in this case was the Miami address appearing in the deed and in the certified tax-roll information used in the tax-deed process. (R. 2749, 2765–2766, 2786).

The Legislature has gone further still. Section 197.502(4)(e), Florida Statutes, provides that a notice of the tax-deed application sent "to the addresses shown on the statement described in subsection (4) is deemed conclusively sufficient to provide adequate notice of the tax deed application and the sale at public auction." The Clerk mailed notice to the Miami address shown on the Tax Collector's subsection (4) statement. (R. 2755, 2765–2766, 2786).

Section 197.522(3), Florida Statutes, further supports affirmance. The current statute permits the Clerk to rely on the names and addresses provided by the Tax Collector based on the certified tax roll and property information reports and provides that the Clerk has no independent duty to investigate the validity of those addresses. Section 197.522(3) defines the Clerk's statutory duty, but statutory compliance remains subject to constitutional due process when officials possess information making reliance on the statutory address unreasonable.

That statutory framework matters. M.K.E.'s theory would require the Clerk and/or Tax Collector to treat every address appearing in every public record, E911 materials, corporate filings, notices of commencement, contractor documents, or other recorded instruments, as a potentially superseding tax-notice address. Chapter 197 does not impose that open-ended obligation.

Nor does due process require it on this record. Due process requires notice "reasonably calculated, under all the circumstances, to apprise interested parties of the pendency of the action and afford them an opportunity to present their objections." *Mullane v. Cent. Hanover Bank & Trust Co.*, 339 U.S. 306, 314 (1950); *accord Vosilla*, 944 So. 2d at 294. It does not require officials to send additional notice to every alternative address appearing anywhere in governmental records.

The trial court correctly rejected that theory.

III. VOSILLA IS MATERIALLY DISTINGUISHABLE.

M.K.E.'s appeal depends primarily on *Vosilla*. But *Vosilla* does not control this case.

In *Vosilla*, the owners sent objectively clear, tax-related instructions that their address had changed. They expressly stated that they had moved

and directed that correspondence concerning the property be sent to the new address. *Vosilla*, 944 So. 2d at 291. They also sent a certified letter stating that their mailing address had changed and requesting that the property-tax records be changed. *Id.* The Clerk acknowledged receipt. *Id.*

The Supreme Court also relied on additional facts confirming that the old address was no longer effective. Before the sale, the sheriff advised the Clerk that the Rosados no longer lived at the address being used for notice. *Id.* at 292. Thus, the government had direct, tax-related change-of-address communications and additional information showing the former address was obsolete.

Those facts are absent here.

M.K.E. did not submit an objectively clear change-of-address instruction directing that future tax-deed or property-tax notices be sent to Brittany Lane. M.K.E. did not identify a record in which the Property Appraiser stated that M.K.E.'s owner mailing address on the tax roll had been changed from Miami to Brittany Lane. And the contemporaneous April 2024 Property Information Report identified Miami as M.K.E.'s "Mailing Address as Shown on Tax Roll." (R. 2765–2766).

M.K.E. argues that it should not matter which taxing authority received the information. LaBelle Homes does not dispute that *Vosilla*

declined to require a titleholder to direct a change of address to any particular taxing authority. *See Vosilla*, 944 So. 2d at 300–01 (observing that the property appraiser prepares the assessment roll under section 193.114(1)(a), but that no provision of Chapter 193 or Chapter 197 "specif[ies] the taxing authority to which notice of a titleholder's change of address should be mailed"). That principle does not aid M.K.E., because it presupposes an actual change-of-address communication; it addresses where such a communication must go, not whether one was made. The material distinction here is what the communication objectively conveyed: the E911 materials requested a new locatable address for the Property and led to the assignment of 1110 Norge Court; they did not direct a change to M.K.E.'s owner mailing address on the tax roll. Indeed, the certified tax roll that the property appraiser is charged with preparing under section 193.114(1)(a) continued to show Miami as M.K.E.'s owner mailing address, as reflected in the contemporaneous Property Information Report. (R. 2765–2766).

The distinction is not technical. It is the difference between the factual setting in *Vosilla* and the factual setting here. *Vosilla* involved government use of a former address after actual tax-related change-of-address communications. This case involves statutory tax-deed records identifying

Miami as the owner mailing address, notwithstanding the existence of other public records containing Brittany Lane.

Vosilla therefore does not require reversal.

IV. DAFERO SUPPORTS AFFIRMANCE EVEN THOUGH THE FACTS ARE NOT IDENTICAL.

The trial court also correctly relied on *Dafero Investments, LLC v. Estrella De Oro, LLC*, 402 So. 3d 1119, 1120–21, 1124–25 (Fla. 3d DCA 2025).

M.K.E. argues that *Dafero* is distinguishable because it involved corporate records rather than E911 materials and a Notice of Commencement. But *Dafero* remains important because it rejects the same type of open-ended search theory M.K.E. advances here. *Id.* at 1124–25.

In *Dafero*, the Third District held that due process did not require the Clerk to search Division of Corporations records for an alternative address where notice was otherwise sent through the statutory tax-deed process. *Id.* at 1124–25. The court distinguished *Vosilla* because the property owner in *Dafero* had not updated its address. *Id.* at 1125.

M.K.E. responds that, unlike the owner in *Dafero*, it did update its address. But the only update the record establishes is the assignment of a new locatable site address for the parcel; M.K.E. never changed the owner

mailing address on the certified roll, which continued to show Miami. As to the operative tax-roll mailing address, M.K.E. therefore stands in the same position as the owner in *Dafero*, and in *Kidder v. Cirelli*, 821 So. 2d 1106 (Fla. 5th DCA 2002), which the Supreme Court cited with approval in *Vosilla*, who "has no right to complain that the clerk did not look hard enough for him." *Vosilla*, 944 So. 2d at 296 (quoting *Kidder*, 821 So. 2d at 1107).

The same principle applies here. M.K.E. points to records outside the certified tax-deed address process and argues that those records required the Clerk or Tax Collector to send additional notice to every alternative address. *Dafero* supports the trial court's conclusion that due process does not impose an open-ended duty to comb through unrelated records for alternative addresses and treat those addresses as superseding the tax-roll mailing address.

LaBelle Homes does not contend that *Dafero* is factually identical. It need not be. *Dafero* is relevant because it confirms that *Vosilla* is not a broad rule requiring tax-deed officials to search all possible public records for other addresses. *Vosilla* applies when the government has received an objectively clear change of address for tax-notice purposes and

nevertheless sends notice to the superseded address. The record here does not establish that circumstance.

The trial court therefore properly found *Vosilla* distinguishable and *Dafero* supportive of affirmance.

V. THE CERTIFIED-MAIL RECEIPT DISPUTE DOES NOT REQUIRE REVERSAL.

M.K.E. separately argues that the certified-mail receipt did not prove actual notice because an unknown person wrote or printed "MKE Homes" on the return receipt. That argument does not establish reversible error.

LaBelle Homes need not prove actual receipt in order to affirm. The constitutional question is whether the notice procedure was reasonably calculated, under the circumstances known at the time, to provide notice.

The Clerk mailed notice by certified mail, return receipt requested, to the address supplied through the statutory tax-deed process. The mailing generated a return receipt bearing the designation "MKE Homes." (R. 1448-1449). The parties dispute whether an authorized M.K.E. representative completed the receipt. That dispute does not change what the Clerk received: an apparent delivery confirmation rather than a returned or undeliverable notice. In addition, the trial court found that notices were

supplied for service and posting, that notice was posted at the Property, and that notice was published for four successive weeks. (R. 3372–3386).

Florida law forecloses M.K.E.'s receipt argument. In *South Investment Properties, Inc. v. Icon Investments, LLC*, 988 So. 2d 1114 (Fla. 5th DCA 2008), the clerk mailed tax-deed notice by certified mail and received signed return receipts, and the owner argued the notice was insufficient because the signatures were not those of its representatives and the clerk was obligated to investigate who had signed. The Fifth District "totally reject[ed]" that argument, holding that the clerk "cannot be expected to investigate the signatures on a return receipt to determine if they belong to an employee or representative of a corporate property owner." *Id.* at 1118.

Consistent with that principle, "[a]ctual receipt of notice is not required, but strict adherence to the statutory requirements is essential." *Levy v. Ippolito*, 503 So. 2d 1308, 1311 (Fla. 2d DCA 1987). M.K.E.'s demand that the Clerk establish or investigate who signed "MKE Homes" on the return receipt asks for precisely the inquiry Florida courts have declined to require.

At most, M.K.E.'s argument creates a factual disagreement over who completed the return receipt and whether M.K.E. actually received the

mailing. But unless M.K.E. first establishes that the notice procedure was constitutionally unreasonable, that factual disagreement is not a basis to invalidate LaBelle Homes' tax deed.

The additional-steps duty recognized in *Jones v. Flowers*, 547 U.S. 220 (2006), and *Delta Property Management, Inc. v. Profile Investments, Inc.*, 87 So. 3d 765 (Fla. 2012), arises when the government receives reliable information that its chosen method of notice has failed, as when the statutory notice is returned undelivered or unclaimed. Here, the Clerk had no comparable information: the certified mailing was not returned unclaimed or undeliverable, and the receipt came back bearing "MKE Homes."

The adequacy of notice in a tax-deed proceeding is measured by the Clerk's statutory notice under section 197.522(1), Florida Statutes. *See Saggese v. Dep't of Revenue*, 770 So. 2d 1244, 1245 (Fla. 4th DCA 2000); *Bozeman v. Higginbotham*, 923 So. 2d 535, 536 (Fla. 1st DCA 2006) (the relevant question is the clerk's compliance with the statutory notice provisions, not whether the owner actually received notice). The trial court expressly found that the Clerk's Notice of Application for Tax Deed "was not returned as undeliverable." (R. 3372–3386). The returned-mail cases on which M.K.E. relied below are therefore inapposite: each turned on the

clerk's statutory notice being returned unclaimed or undeliverable, the very circumstance that did not occur here.

Nor was the third person's signature on the receipt dispositive in *Vosilla*. The constitutional defect arose in the context of the owners' direct, tax-related change-of-address communications and the sheriff's separate notice that they no longer lived at the old address. *Vosilla*, 944 So. 2d at 291–92. Here, the absence of comparably clear information—not the receipt alone—is the material distinction.

M.K.E.'s reliance on the disputed receipt therefore does not supply the reversible error missing from its principal address-change argument.

VI. THE JUDGMENT QUIETING TITLE IN LABELLE HOMES SHOULD BE AFFIRMED.

The five issues addressed above establish that M.K.E. has not shown constitutionally inadequate notice or another reversible defect invalidating the tax deed. Because the tax deed was valid, it conveyed the statutory title provided by section 197.552, Florida Statutes, and the trial court correctly quieted title in LaBelle Homes. (R. 3372–3386).

CONCLUSION

For the foregoing reasons, Appellee LaBelle Homes, Inc. respectfully requests that this Court affirm the November 6, 2025 Order Granting Defendants' Motions for Summary Judgment, affirm the judgment quieting fee simple title in LaBelle Homes, and grant such further relief as the Court deems just and proper.

October 16, 2026

MARC L. SHAPIRO, P.A.

/s/ *Marc L. Shapiro*
Marc L. Shapiro

Florida Bar No. 957062
720 Goodlette-Frank Rd. N, Suite 304
Naples, FL 34102
Primary: marc@attorneyshapiro.com
Secondary:
service@attorneyshapiro.com
Counsel for Appellee LaBelle Homes Inc.

CERTIFICATE OF SERVICE

I HEREBY CERTIFY that, on October 16, 2026, a true and correct copy of the foregoing was filed through the Florida Courts E-Filing Portal and served through the Portal on all counsel of record designated for e-service in accordance with Florida Rule of Appellate Procedure 9.420 and Florida Rule of General Practice and Judicial Administration 2.516.

MARC L. SHAPIRO, P.A.

/s/ *Marc L. Shapiro*
Marc L. Shapiro

Florida Bar No. 957062
720 Goodlette-Frank Rd. N, Suite 304
Naples, FL 34102
Primary: marc@attorneyshapiro.com
Secondary:
service@attorneyshapiro.com
Counsel for Appellee LaBelle Homes Inc.

CERTIFICATE OF COMPLIANCE

I certify that this brief complies with the font and word count requirements of Fla. R. App. P. 9.045(b) and Fla. R. App. P. 9.210(a)(2). The certificate relies on the word count of the word-processing system used to prepare the brief, as Fla. R. App. P. 9.045(e) permits.

MARC L. SHAPIRO, P.A.

/s/ *Marc L. Shapiro*
Marc L. Shapiro

Florida Bar No. 957062
720 Goodlette-Frank Rd. N, Suite 304
Naples, FL 34102
Primary: marc@attorneyshapiro.com
Secondary:
service@attorneyshapiro.com
Counsel for Appellee LaBelle Homes Inc.